SAKALA LOGISTICE (PRIVATE) LIMITED
versus
GATEHILL ENTERPRISES (PRIVATE) LIMITED
and
NABOTH GAZA
and
FIRST CAPITAL BANK LIMITED
and
DANZIGER AND PARTNERS

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 17 & 24 February 2026

Opposed Application

K. Kachambwa, for the applicant
R.G. Zhuwarara, for the 1st and 2nd respondents
S. Musapatika, for the 4th respondent

MAMBARA J:

Introduction

[1] This is a ruling on an application, made at the commencement of the hearing, to amend the citation of the applicant from Sakala Logistics (Private) Limited to Swann Logistics (Pvt) Ltd formerly known as Sakala Logistics (Pvt) Ltd. The applicant relied on paperwork at page 25 of the record said to evidence a change of name, and invoked ss 25(4) and 26 (especially s 26(5)) of the Companies and Other Business Entities Act [*Chapter 24:31*] ("the COBE Act").

[2] The application was strenuously opposed by the first and fourth respondents. The opposition proceeded on the basis that the entity cited as applicant does not exist; that proceedings were instituted eight years after the alleged cessation of "Sakala Logistics (Private) Limited"; and that what is sought is not a curative correction of a misdescription, but an impermissible substitution of parties which cannot be effected by amendment where the litigant at inception was a non-entity. The respondents further complained of inordinate delay and want of a credible explanation.

[3] The question placed before the court is deceptively narrow, but it is jurisdictional in character: was there, in law, a litigant capable of invoking this Court's process when these proceedings were instituted; and, if not, can an amendment be granted to resuscitate what is a nullity?

Procedural background and the competing submissions

[4] Mr *Kachambwa* for the applicant moved an application at the bar to amend the applicant's citation to read "Swann Logistics (Pvt) Ltd formerly known as Sakala Logistics (Pvt) Ltd." He submitted that he had previously discussed the issue with counsel for the first and fourth respondents, who took the position that the amendment was impossible because "Sakala Logistics (Private) Limited does not exist."

[5] Counsel argued that there is a distinction between misdescription and wrong citation. Reliance was placed upon Mapondera and 55 Others v Freda Rebecca Gold Mine Holdings Limited SC 81/22, [2022] ZWSC 81 (14 July 2022), particularly on the treatment of incorrect citation and the modern tendency to prefer substance over technicalities where no prejudice exists.

[6] Counsel then invoked ss 25(4), 26 and 26(5) of the COBE Act, contending that those provisions regulate change of a company name and explicitly provide that a change of name shall not render legal proceedings invalid or defective.

[7] The applicant also relied upon a High Court decision said to have dealt with similar objections, namely *Mukarati* v *Pioneer Africa Ltd* HH 333/24, in which it was submitted the court dismissed objections grounded on misdescription and interpreted the COBE provision.

[8] Mr Zhuwarara for the first respondent opposed the application. He anchored his opposition on principles governing amendment and the need for an amendment to be "seriously sought," referring to *UDC Ltd* v *Shamva Flora (Pvt) Ltd* 2000 (2) ZLR 210 (H).

[9] He submitted that the point was raised in the notice of opposition filed in April 2025 and that the applicant gave no explanation for the delay in bringing the amendment. He further submitted that, on page 25 of the record, "Sakala Logistics" ceased to exist on 3 June 2016. On his argument, the main matter (HC 2634/25) was instituted in 2025, long after "Sakala Logistics" had ceased to exist.

[10] He argued that the founding affidavit and the papers are permeated with references to "Sakala Logistics (Private) Limited," and asked how the amendment would rectify the affidavits, contending that affidavit evidence is not amended as pleadings are; thus any "defect" remains uncured.

[11] He relied on Zimbabwean authority for the proposition that a summons or process issued by or against a non-existent person is null and *void ab initio* and cannot be saved by amendment, citing *Gariya Safaris (Pvt) Ltd* v *Van Wyk* 1996 (2) ZLR 246 (H) (and related authorities), and further invoked *JDM Agro-Consult & Marketing (Pvt) Ltd* v *Editor of the Herald Newspaper & Anor* 2007 (2) ZLR 71 (H) (also reported as [2007] ZWHHC 61 (7 August 2007)).

[12] Mr Musapatika for the fourth respondent associated himself fully with the first respondent's submissions and likewise urged dismissal.

The governing principles on amendment, misdescription, and non-entity litigation

[13] It is trite that the Court has a discretion to allow amendments in order to facilitate the proper ventilation of disputes. That discretion, however, is judicial: it is not exercised "for the mere asking." In *UDC Ltd* v *Shamva Flora (Pvt) Ltd* 2000 (2) ZLR 210 (H), the High Court articulated the factors that typically guide the exercise of the discretion, including the need for some explanation, the bona fides of the applicant, and whether the amendment raises a triable issue and causes prejudice not curable by costs or other suitable orders.

[14] The law nevertheless draws a fundamental line between (a) correcting the description of an existing litigant who is in truth before the court, and (b) attempting to substitute or introduce a different litigant where the proceedings were instituted by or against a non-entity.

[15] In *JDM Agro-Consult & Marketing (Pvt) Ltd* v *Editor of the Herald Newspaper & Anor*, the plaintiff sued "The Editor of The Herald Newspaper" and "The Herald Newspaper". The point taken at trial was that the "Editor" as cited was not a natural or juristic person, and that there was "no entity called the Herald Newspaper" as a legal person; hence there were no defendants before the court. The court held that the defect went to the summons itself and could not be cured: "You cannot amend or substitute something which does not exist." The claim was dismissed for nullity.

[16] In reaching that conclusion, the High Court in *JDM Agro-Consult* quoted with approval the principle expressed in *Gariya Safaris (Pvt) Ltd* v *Van Wyk* 1996 (2) ZLR 246 (H), namely that process has legal force only when issued against an existing legal or natural person; where there is no such person, the summons is null and *void ab initio.*

[17] The Supreme Court has also treated the invocation of jurisdiction by a non-existent litigant as fatal. In *Veritas* v *Zimbabwe Electoral Commission & Ors; Firinne Trust* also known as *Veritas* v *Zimbabwe Electoral Commission & Ors* SC 103/20, [2020] ZWSC 103 (17 July 2020), the Court observed that jurisdiction must be invoked properly and lawfully and "cannot be lawfully invoked at the instance of a non-existent party." The appeal against the points in limine failed, and the core holding confirmed the incapacity of a non-entity to found proceedings that are later sought to be "rescued" by amendment.

[18] These principles are not idiosyncratic to Zimbabwean procedure. The common law has long recognised that what is void ab initio cannot be retrofitted by procedural manoeuvre. In *McFoy* v *United Africa Co Ltd* [1961] 3 All ER 1169 (PC), Lord Denning memorably stated that you cannot "put something on nothing and expect it to stay there." That dictum has been embraced in our jurisdiction as an articulation of the nullity doctrine.

[19] South African law, which has persuasive value in our procedural jurisprudence, similarly distinguishes between misdescription and substitution. *In Four Tower Investments (Pty) Ltd* v *André's Motors* 2005 (3) SA 39 (N), cited in *Mapondera* SC 81/22, the court allowed an amendment where the plaintiff was misdescribed (a company rather than a close corporation), holding that the misdescription should not automatically render the proceedings a nullity and that amendments should be granted absent mala fides or irremediable prejudice.

[20] But even that line of authority presupposes that there is a real entity, sufficiently identified, whose misdescription is sought to be corrected—rather than a vacancy where no litigant existed at all.

The statutory framework in ss 25 and 26 of the COBE Act

[21] Because substantial weight was placed on ss 25(4) and 26 of the COBE Act, it is necessary to interpret those provisions in their context.

[22] Section 25 is headed "Prohibition of undesirable name." It empowers the Registrar to refuse registration of a name that is identical or deceptively similar, misleading, offensive, suggests governmental patronage without consent, or is undesirable for any other reason.

[23] Section 25(4) provides that if a company fails to comply with an order made by the Registrar under s 25(3) to change an objectionable name, the Registrar may apply to the High Court for an order to have the name of the company changed.

[24] This subsection is not, in its design, a general provision governing how litigants should be cited in court proceedings after a change of name. It is a remedial mechanism to enforce compliance with a directive to change an undesirable name. It underscores, however, that a company's name is not a mere label; it is a regulated legal identifier, and the legislature contemplates formal alteration by due process and, where necessary, court intervention.

[25] Section 26 then specifically regulates change of name. It requires prior written approval from the Registrar, publication of the change, and the issuance of a certificate of change of name. Thereafter, the Registrar enters the new name in the register in place of the former name.

[26] Section 26(5) is the provision most relied upon by the applicant. It states that a change of name "shall not affect any right or obligation of the registered business entity, or render defective any legal proceedings by or against the entity," and that legal proceedings that might have been continued or commenced under the former name "may be continued or commenced under its new name."

[27] Properly construed, s 26(5) achieves two principal objects. First, it prevents a company from escaping pre-existing rights and obligations (and, correlatively, prevents other persons from resisting legitimate claims) merely because the company's registered name has changed. Second, it makes clear that the procedural continuity of litigation is preserved by permitting proceedings to be pursued under the new name

[28] The phrase "may be continued or commenced under its new name" is significant. The subsection does not say that proceedings may be "commenced under the former name notwithstanding the change." Rather, it provides that proceedings which might otherwise

have been continued or commenced by or against the same entity under its former name may now be continued or commenced under the new name.

[29] A purposive reading yields this: once the Registrar has entered the new name in place of the former name, the company remains the same juristic person, but it must litigate in its current registered name. The statute safeguards substantive rights from being derailed by a name change, but it does not licence indifference to proper legal identity in pleadings, especially where the chosen citation creates uncertainty as to whether the litigant is the same juristic person at all.

[30] The provision therefore assists a party who, in bona fide fashion, seeks to regularise the manner in which an existing juristic person is identified. It does not assist a party who fails to show—on oath and with clarity—that the entity now sought to be introduced is the same entity that invoked the Court's process, and that the initial invocation was in truth by or against the entity rather than by a non-entity.

Application of the law to the present application

[31] The applicant's proposed amended citation is: "Swann Logistics (Pvt) Ltd formerly known as Sakala Logistics (Pvt) Ltd." The question remains whether, on the material placed before the court, this is in truth a correction of a misdescription of an existing litigant, or whether it operates, in substance, as a substitution in circumstances where the proceedings were instituted under a name said not to exist.

[32] The COBE Act is concerned with change of a company name under s 26. The phrase "formerly known as" is the appropriate descriptor where what is alleged is a statutory change of registered name, and I accept that the proposed amended citation is, in form, consonant with a straight change-of-name scenario. But it remains for the applicant, if it wishes to rely on s 26, to demonstrate—on oath and with clarity—the continuity of the juristic person in whose name these proceedings were instituted, and that the name change relied upon is indeed the one contemplated by the statute. That evidential foundation is lacking on the application as presented.

[33] Next, and more importantly, the application was made at the bar, without a supporting affidavit explaining the origin of the error, the nature of the change, the chronology, and why

the amendment could not have been sought earlier. Yet the need for explanation, and the need for the Court to be satisfied on bona fides and absence of prejudice, is a core element of amendment jurisprudence under *UDC Ltd* v *Shamva Flora (Pvt) Ltd* 2000 (2) ZLR 210.

[34] The absence of an explanation carries particular weight here because the objection regarding citation was raised in the notice of opposition filed in April 2025. The applicant then waited until the commencement of hearing to move an amendment. This delay was not meaningfully explained. Even where courts adopt a liberal approach to amendments, unexplained delay and tactical ambush weigh against indulgence.

[35] The applicant seeks to characterise the matter as a mere misdescription. But misdescription depends on one decisive premise: that the correct legal person is sufficiently identified and is in truth before the Court, albeit under an inaccurate label. *Mapondera* SC 81/22 itself begins from the proposition that one cannot sue a non-existent person, but allows correction where there is an existing entity misdescribed, and where justice requires regularisation rather than nullification.

[36] In *Mapondera,* the Supreme Court emphasised that technicalities should not be allowed to defeat substantive justice in labour-related proceedings and recognised that misdescription can be regularised, particularly where there is no prejudice and the context explains the error (for example, errors by conciliators in drafting arbitration references).

[37] The present matter is different in three crucial respects.

[38] First, unlike labour references drafted by third parties, the applicant here invoked the Court's process through its own legal practitioners and maintained the same citation throughout its papers, without placing before the Court a coherent sworn explanation demonstrating that the litigant was always the same juristic person. The Court is not entitled to speculate itself into jurisdiction.

[39] Second, while the proposed amended citation is framed as a change of registered name ("formerly known as") and is therefore, in form, a correction consonant with s 26, the applicant still leaves unresolved on the papers the core question of identity and continuity. In the absence of proper evidential material, the amendment risks operating as a substitution of parties rather than a mere correction of description.

[40] Third, the respondents' prejudice is not confined to inconvenience. The prejudice is structural: if a non-entity instituted the proceedings, then there were no proceedings properly before the Court, and there is nothing to amend. That proposition was authoritatively affirmed in *JDM Agro-Consult & Marketing (Pvt) Ltd* v *Editor of the Herald Newspaper & Anor*, where it was held that where there is no defendant as a legal person, "this is not a mis-description … You cannot amend or substitute something which does not exist."

[41] The same logic underpinned *Veritas* SC 103/20, where the Supreme Court emphasised that jurisdiction cannot be lawfully invoked at the instance of a non-existent party.

[42] The applicant's reliance on s 26(5) of the COBE Act does not displace these principles. As I have explained, s 26(5) preserves rights and prevents proceedings from becoming defective because of a change of name, but it still contemplates that proceedings are conducted under the entity's new name, and it presupposes that what is before the court are proceedings truly "by or against the entity."

[43] Where, as here, the applicant's papers were instituted and prosecuted in the name of a company which—on the respondents' argument supported by the record reference—had ceased to bear that name by mid-2016, and where the applicant does not place a clear sworn basis demonstrating the continuity and identity of the juristic person, the Court cannot proceed on the footing that this is merely a harmless misnomer.

[44] To allow the amendment as sought would be to accept, without proper evidential foundation, that the Court's jurisdiction was invoked by an existing litigant, and to retrofit the process to create legality after the fact. That is impermissible. The nullity doctrine is not a fetish; it is a safeguard that the coercive power of the court is invoked only by and against persons recognised by law. The McFoy principle—often repeated in our courts—remains apt: proceedings founded on nothing cannot be made to stand through amendment.

[45] I accept that modern procedural approaches generally prefer correction over destruction where the identity of the true litigant is clear and no prejudice exists, as illustrated by *Four Tower Investments (Pty) Ltd* v *André's Motors* 2005 (3) SA 39 (N), relied upon in *Mapondera* SC 81/22.

[46] But even on that approach, the duty lies on the party seeking indulgence to demonstrate that the amendment is bona fide, that it truly cures a misdescription, and that the other parties will not suffer injustice. The applicant did not provide the Court with that necessary foundation, either procedurally (by a properly motivated application) or substantively (by coherent evidential material matching the amendment sought to the statutory scheme of ss 25 and 26).

[47] The application must therefore fail.

Disposition

[48] In the result, the applicant's application to amend the citation of the applicant is dismissed.

[49] The applicant shall pay the first and fourth respondents' costs of this application, jointly and severally, the one paying the other to be absolved.

MAMBARA J…….

Mafongoya & Matapura, legal practitioners for the applicant
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